



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 10 OCTOBER 2016

PRESENT:

Hon. Edison R. Bilog, *City Vice-Mayor and Presiding Officer*;
Hon. Leandro B. Yangot Jr., *Member*;
Hon. Edgar M. Avila, *Member*;
Hon. Joel A. Alangsab, *Member*;
Hon. Faustino A. Olowan, *Member*;
Hon. Elmer O. Datuin, *Member*;
Hon. Maria Mylen Victoria G. Yaranon, *Member*;
Hon. Elaine D. Sembrano, *Member*;
Hon. Peter C. Fianza, *Member*;
Hon. Lilia A. Fariñas, *Member*;
Hon. Arthur L. Allad-iw, *Member*; and
Hon. Benny O. Bomogao, *Member*.

ABSENT:

Hon. Roberto C. Ortega, *Member* (with prior notice);
Hon. Michael L. Lawana, *Ex-Officio Member* (with prior notice).

VACANT:

Ex-Officio Member (President, Pederasyon ng mga Sangguniang Kabataan,
City Chapter).

*Based on the report and recommendation of the
Committee on Laws.*

**RESOLUTION Numbered 223
(Series of 2016)**

GRANTING FAVORABLE REVIEW OF ORDINANCE NO. 001, SERIES OF 2016 [AN ORDINANCE TO TOTALLY REPEAL ORDINANCE NO. 02, SERIES OF 2011 (AN ORDINANCE CREATING LIVELIHOOD PROJECTS FOR THE SENIOR CITIZENS, WOMEN'S CLUB, SANGGUNIANG KABATAAN AND THE BARANGAY COUNCIL AS EXTRACTED FROM CITY ORDINANCE NUMBERED 07, SERIES OF 2006)], OF LUALHATI BARANGAY, BAGUIO CITY, AS PER 2ND INDORSEMENT DATED 16 SEPTEMBER 2016 OF THE COMMITTEE ON LAWS.

WHEREAS, Lualhati Barangay, Baguio City, furnished the *Sangguniang Panlungsod* (City Council) for review copy of its Ordinance No. 001, Series of 2016; and

WHEREAS, the Committee on Laws in its 2nd Indorsement dated 16 September 2016 stated that:

"Ordinance Number 02, Series of 2011 was granted favorable review through Resolution Numbered 052, Series of 2016 by the City Council on a regular session dated March 28, 2016.

"A dialogue was conducted with the Sangguniang Barangay of Lualhati on August 16, 2016 at the Sangguniang Panlungsod Session Hall, City Hall, Baguio City in relation to Barangay to Barangay Ordinance No. 001, Series of 2016 for the total repeal of Ordinance No. 02, Series of 2011.

"The contents of the Committee Report of the Committee on Barangay Affairs which was attached for the Approval of Ordinance No. 02, Series of 2011 summarized the circumstances/findings before its approval on March 28, 2016 which are similar to what was taken up and discussed during the dialogue. The favorable review of the said ordinance has stated likewise that it would be 'without prejudice to the legislative discernment and discretion of the Barangay Council of Lualhati whether or not to enact and pass an ordinance repealing the latter' which pertains to Ordinance No. 02, Series of 2011.

"Hence, Ordinance No. 001, Series of 2016 to tally repeal Ordinance No. 001, Series of 2016 is submitted for review duly signed by the majority of the Barangay Council to represent the clamor of the majority of the constituents of the Barangay through a General Assembly last April 03, 2016 that the infrastructure and livelihood projects be removed including all stalls, stores or tents.

"Moreover, the infrastructure and livelihood and projects has caused misunderstandings not only of the constituents and stakeholders but also among the Barangay Council thereby losses the objective of the livelihood project to promote unity at the same time to augment resources and income and give assistance to various sectors in the barangay such as the Senior Citizens, Sangguniang Kabataan, Women's Groups as well as the Barangay itself.

"RECOMMENDATION

"The Committee on Laws hereby recommends the approval of Ordinance No. 01, series of 2016, for the repeal of Ordinance No. 02, Series of 2011 both of Lualhati Barangay and for the Barangay to further study and possibly craft a new ordinance for its livelihood project/s taking into consideration all necessary provisions as provided for in an ordinance."

NOW, THEREFORE, on motion of Hon. Olowan, Hon. Avila, and Hon. Bomogao, seconded by Hon. Yangot, Hon. Sembrano, Hon. Alangsab, Hon. Allad-iw, and Hon. Fariñas, be it

RESOLVED, as it is hereby resolved, that favorable review is granted to Ordinance No. 001, Series of 2016, of Lualhati Barangay, Baguio City, pursuant to Section 458 (a) (l) (i) of the Local Government Code of 1991, as amended, as per 2nd Indorsement dated 16 September 2016 of the Committee on Laws.

RESOLVED, FURTHER, for the barangay to further study and possibly craft a new ordinance for its livelihood project/s taking into consideration all necessary provisions as provided for in an ordinance.

Unanimously adopted.

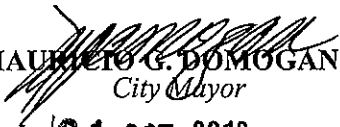
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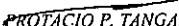
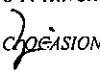
Attested:


BRENNER L. BENGWAYAN
City Secretary


EDISON R. BIOG
*City Vice-Mayor and
Presiding Officer*
OCT 21 2016

NOTED:


MAURICIO G. DOMOGAN
City Mayor
21 OCT 2016


PROTACIO P. TANGALIN JR.

NECHEL CHOCASION